

Treasury.

Treasury at both the Lord Treasurer or other Superior Officers for the time being contrary to the true intent of this Act That then such Officer or Officers are detaining or misapplying the said Money shall Forfeit the like Summe as he diverted or misapplied Which said Forfeiture shall be Recovered by Action of Debt Bill Plea or Information in any of Their Majesties Courts of Records at Westminster wherein no Exchange Provision or Waiver of Law shall be allowed the one Moiety of which Forfeiture not to be Recovered shall be to the Infanter or him who shall sue for the same the other Moiety thereof to be distributed to the Poore of the Parish where such Officers shall be committed.

LII
The like Offence
by any Officer of
the Exchequer or
Tory.

And here is further Enacted That if any [Officer] or Officers mentioned in this Act or in any wise belonging to the Exchequer or Tory shall wilfully and wilfully offend against this Law or any Clause thereof by diverting or misapplying any part of the said Summe of Five hundred thousand Pounds appropriated to several country to the true intent of this Act due for any and every such Offence such Officer and Officers so Offending shall forfeit his Office and Place and is and are hereby disabled and made incapable to Hold or Exercise the said Office or any other Office whatsoever for the future.

LIII
No Day of
Proclamation
to be made in any
Case for Recovery
of Penalties.

Provided also and here is Enacted That no Day of Proclamation upon any Command Warrant Motion or Order or Direction by Sea or otherwise Proclaim shall be Had Made Admitted Received or Allowed by any Court whatsoever in any Case or Proceeding by Action of Debt Bill Plea or Information or otherwise for the Recovery of all or any the Penalties or Forfeitures upon any person or persons by this Act inflicted or therein mentioned or for or in Order to the Conviction or Disability of any person Offending against this Act.

LIV
Commissions
may be made
in any Case to
execute upon Oath
and receive the
Assurance made
in pursuance of
this Act. s. 1. & 10.
and if they find
any Person accused
of a Crime that
was directed by
the said Act to
be made
[Delivery to
be made]

Provided always and here is Enacted That the Commissioners appointed to put this Act in Execution shall and are hereby empowered and required within their respective Counties Divisions Cities and Places to Enquire upon Oath and [Return] the several Assurances of such Parish and Place made in pursuance of the late Act Enacted An Act for a Grace to Their Majesties Twelve penny in the Pound for One Year for the necessary Defence of Their Realm And where they shall find any Person or Place Assured at a lower Rate or lower Summe than was directed by the said Act to assure the Summe so committed to be raised and paid to Their Majesties in such manner and by such ways and Means and under such Penalties and Forfeitures as are herein before Provided and Directed for the Assessing and Levying the Summes chargeable by this present Act.

LIV
An Assent to
be made in the
Council of
Matters moved
under this Act.

And it is hereby further Enacted by the Authority aforesaid That an Assent shall be given and made unto the Commons in Parliament Assembled of and for all and every Summe and Summes of Money whatsoever that shall be Collected Levied and Paid to the Use of Their Majesties by Virtue of this present Act of Parliament.

CHAPTER II.

An Act declaring the Rights and Liberties of the Subject and Settling the Succession of the Crown.

See Part p. 5.
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WHEREAS the Lords Spiritual and Temporal and Commons assembled at Westminster lawfully fully and truly representing all the Estates of the People of this Realm did upon the thirtieth day of February in the year of our Lord one thousand six hundred eighty eight present unto their Majesties then called and known by the Names and Stile of William and Mary Prince and Princess of Orange being present in their proper Persons a certain Declaration in Writing made by the said Lords and Commons in the Words following viz.

The Rights of
Declaration of
Rights and
Commons, 1689.

WHEREAS the late King James the Second by the Assistance of diverse evil Counsellors Judges and Ministers employed by him did endeavour to subvert and extirpate the Protestant Religion and the Laws and Liberties of this Kingdom.

Dispensing and
Suspending Powers.

By Assuming and Exercising a Power of Dispensing with and Suspending of Laws and the Execution of Laws without Consent of Parliament.

Granting
Pensions.

By Granting and Proceeding diverse Worthy Pensions for sundry Persons to be exempted from Concurring to the said Assented Powers.

Establishing
Commissions.

By Issuing and causing to be executed a Commission under the Great Seal for Establishing a Court called The Court of Commissioners for Ecclesiastical Causes.

Levying Money.

By Levying Money for and to the Use of the Crown by Virtue of Proscription for other time and in other manner than the same was granted by Parliament.

Standing Army.

By raising and keeping a Standing Army within this Kingdom in time of Peace without Consent of Parliament and Quartering Soldiers contrary to Law.

Disarming
Protestants, &c.

By causing several good Subjects being Protestants to be disarmed at the same time when Papists were both Armed and employed contrary to Law.

Violating
Electors
Legal
Privileges.

By Violating the Privileges of Election of Members to serve in Parliament by Proclamations in the Court of Kings Bench for Masters and Clerks obligable only in Parliament and by diverse other Arbitrary and Illegal Courses.

And

And whereas of late years Partial Corruption and Unqualified Persons have borne returned and served on Juries in Tryalls and particularly diverse Jurors in Tryalls for High Treasons which were not Freeholders,

And excessive Bails hath bene required of Persons committed in Criminal Cases to staid the Benefit of the Laws made for the Liberty of the Subjects.

Excessive Bail.

And excessive Fines have bene imposed.

From Penalties.

And illegal and cruel Punishments inflicted.

Grants of Pardon before Conviction.

And several Grants and Pardon made of Fines and Forfeitures before any Conviction or Judgment against the Persons upon whom the same were to be levied.

All which are strictly and directly contrary to the known Laws and Statutes and Precedents of this Realm.

Record that the late King James II. had obtained the Government, and that the Throne was vacant, and that the Prince of Orange had written Letters to the Lords and Commons for the choosing Representatives in Parliament.

And whereas the said late King James the Second having Abolished the Government and the Throne being thereby Vacant His (Highness) the Prince of Orange (whom it hath pleased Almighty God to make the glorious Instrument of Delivering this Kingdom from Popery and Arbitrary Power) did (by the Advice of the Lords Spiritual and Temporal and diverse principal Persons of the Commons) cause Letters to be written to the Lords Spiritual and Temporal being Protestants and other Letters to the several Counties Cities Universities Burroughs and Cinque Ports for the Choosing of such Persons to represent them as were of right to be sent to Parliament to meet and sit at Westminster upon the two and twentieth day of January in the Year now discussed six hundred eighty and eight in order to such an Establishment as that their Religion Lives and Liberties might not againe be in danger of being Subverted, Upon which Letters Writings Answer being accordingly made

The Subjects Rights.

And thereupon the said Lords Spiritual and Temporal and Commons pursuant to their respective Letters and Elections being now assembled in a full and free Parliament of this Nation taking into their most serious Consideration the best manner for attaining the Ends above said in the first place (so their Answerers in like Case have most fully done) for the Visiting and Assuring their ancient Rights and Liberties, Declare

Depositing Power.

That the pretended Power of Suspending of Laws or the Execution of Laws by Regall Authority without Consent of Parliament is illegal.

Law depending there.

That the pretended Power of Dispensing with Laws or the Execution of Laws by Regall Authority in it hath bene assumed and exercised in law illegal.

Embodied Army illegal.

That the Commission for assailing the late Court of Commissioners for Ecclesiastical Causes and all other Commissions and Courts of like nature are illegal and Perjurous.

Laying Money.

That levying Money for or to the Use of the Crown by Force of Privilege without Grant of Parliament for longer time or in other manner than the same is or shall be granted is illegal.

Right in person.

That it is the Right of the Subjects to petition the King and all Commissions and Proclamations for such Petitioning are illegal.

Standing Army.

That the raising or keeping a standing Army within the Kingdom in time of Peace without a bill with Consent of Parliament is against Law.

Subjects Arms.

That the Subjects which are Protestants may have Arms for their Defence suitable to their Conditions and as allowed by Law.

Freedom of Election Freedom of Speech.

That Election of Members of Parliament ought to be free.

That the Freedom of Speech and Debates or Proceedings in Parliament ought not to be impeached or questioned in any Court or Place out of Parliament.

Excessive Bail.

That excessive Bails ought not to be required nor excessive Fines imposed nor cruel and unusual Punishments inflicted.

Jury.

The Jurors ought to be duly impanelled and retained and Jurors which pass upon Men in Trials for High Treason ought to be Freeholders.

Grants of Pardon.

That all Grants and Pardon of Fines and Forfeitures of particular persons before Conviction are illegal and void.

Frequent Parliaments.

And that for Redress of all Grievances and for the attaining strengthening and procuring of the Laws, Parliaments ought to be held frequently.

The said Rights claimed.

And they doe Claim Demand and Insist upon all and singular the Premises as their undoubted Rights and Liberties and that these Declarations Judgements Doings or Proceedings to the Prejudice of the People in any of the said Premises ought in any way to be drawn hereafter into Consequence or Example. To which Demand of their Rights they are particularly encouraged by the Declaration of his Highness the Prince of Orange as being the only remedies for obtaining a full Redress and Remedy therein. Having therefore as state Confidence that his said Highness the Prince of Orange will perfect the Deliberation now fur advanced by him and will still preserve them from the Violation of their Rights which they have been assured and from all other Attempts upon their Religious Rights and Liberties, The said Lords Spiritual and Temporal and Commons assembled at Westminster doe Resolve That William and Mary Prince and Princess of Orange be and be declared King and Queen of England France and Ireland and the Dominions thereunto belonging to hold the Crown and Regall Dignity of the said Kingdoms and Dominions to them the said Prince and Princess during their Lives and the Life of the Survivor of them And that the sole and full Exercise of the Regall Power be only in and concerned by the said Prince of Orange in the Names of the said Prince and Princess during their joint Lives And after their Decease the said Crown and Regall Dignity of the said Kingdoms and Dominions to be to the Honor of the Body of the said Princess And for default of such Issue to the Princess Anne of Denmark and the Heirs of her Body And for default of such Issue to the Heirs of the Body of the said Prince of Orange. And the Lords Spiritual and Temporal and Commons doe pray the said Prince and (') Princess to accept the same accordingly.

Title of the Crown.

Regal Power reserved.

Execution of the Crown.